

BEFORE THE IOWA BOARD OF SOCIAL WORK

RE:
Social Worker Independent Level
License of

JAMES BURKHALTER
License No. 007575
Respondent

CASE NO. 21-0344

**SETTLEMENT AGREEMENT AND
FINAL ORDER**

Pursuant to Iowa Code sections 17A.12(5) and 272C.3(4), and 645 Iowa Administrative Code (IAC) chapter 12, the Iowa Board of Social Work ("Board") and James Burkhalter ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. The Board filed a Notice of Hearing and Statement of Charges on November 14, 2022.
2. The Board has jurisdiction over Respondent and the subject matter of this proceeding.
3. Respondent acknowledges that these factual circumstances, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order. The following factual circumstances are incorporated into this Order:
 - a. Respondent holds Iowa license number 007575 to practice social work at the independent level, which is currently active through December 31, 2024.
 - b. In 2021, Respondent provided therapy to a client.
 - c. In December 2021, the client reported that she was having a dual relationship with Respondent.
 - d. Following this report, Respondent was directed by his employer to cease further contact with the client.
 - e. In April 2022, Respondent was in contact with the client, but denied the contact during the Board investigation.
 - f. Text messages between Respondent and the client contain sexual statements and indications that Respondent went to the client's home.
4. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to a hearing before the Board on the charges, but Respondent waives the right to a hearing

and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

5. Respondent acknowledges that they have the right to be represented by counsel on this matter.

6. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

7. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

8. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

9. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

10. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

11. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

12. Count II of the charges in the Notice of Hearing and Statement of Charges is hereby dismissed.

13. Respondent's license is **INDEFINITELY SUSPENDED**. Respondent may not practice as a social worker while his license is suspended. Respondent may apply for reinstatement of his license after completion of all of the following:

- a. Completion of a comprehensive mental health, substance use, and boundaries evaluation with a Board-approved provider, who is experienced in providing mental health, substance use, and boundaries evaluations and who can objectively evaluate Respondent. The Board shall be notified of the scheduled evaluation at least ten (10) days in advance so that the pertinent complaint information can be transmitted from the Board to the evaluator. Respondent shall ensure the evaluation report is sent directly from the evaluator to the Board. The evaluation report must address Respondent's ability to safely practice as a social worker and must include any recommendations for ongoing treatment or care. The suspension will remain in effect unless and until the evaluator determines Respondent is able to safely practice as a social worker.

- b. Respondent shall complete the course entitled “Professional Boundaries and Ethics-Enhanced” offered by PBI Education and submit proof of completion to the Board. These hours are in addition to the standard continuing education requirements for license renewal and cannot be used to satisfy the required hours for license renewal.
- c. Respondent shall submit the name and credentials of a proposed supervisor who meets the requirements of 645 IAC 280.6(2) and who can objectively supervise Respondent, along with a proposed supervision plan, to the Board for approval. Respondent shall provide the proposed supervisor with a copy of this Agreement.
- d. A minimum of ninety (90) days has elapsed from the date of Board approval of this Order.

14. After the Board or the Board’s designee has determined that Respondent has satisfactorily completed all of the requirements set forth in paragraph 13, and upon completing the administrative requirement for license reactivation, if applicable, Respondent’s license shall be reinstated and placed on **PROBATION** for a period of three (3) years, subject to the following terms and conditions:

- a. Respondent shall comply with all recommendations for ongoing treatment or care and any conditions or restrictions to ensure safe practice identified in the evaluation, as applicable.
- b. Respondent shall only engage in the practice of social work as part of an agency or group practice with oversight over Respondent by at least one independently licensed mental health provider.
- c. Respondent shall not utilize text messaging, or similar phone messaging applications, to communicate with current clients or former clients within five (5) years of the termination of the client relationship.
- d. Respondent shall complete three (3) years of supervised clinical practice before being released from probation. Respondent must receive Board approval prior to changing supervisors. This supervision is for purposes of monitoring a licensee who is completing a disciplinary sanction and not for purposes of licensure; Respondent retains the ability to practice at the independent level, including billing for services at the independent level.
- e. Respondent must have individual direct supervision with his supervisor for a minimum of one (1) hour on a weekly basis for the first year of practice. Upon recommendation of his supervisor, the frequency of individual direct supervision may be reduced to biweekly for the second year of practice. Upon recommendation of his supervisor, the frequency of individual direct supervision may be reduced to monthly for the third year of practice. The individual direct supervision must evaluate Respondent’s clinical practice and address any potential boundary, ethical, or other concerns. As part of

the evaluation of Respondent's clinical practice, Respondent's supervisor shall review records from a minimum of ten (10) percent of Respondent's clients seen in the previous week. Respondent's supervisor shall submit quarterly reports to the Board detailing the supervision provided. Respondent is responsible for ensuring the quarterly reports are timely submitted to the Board by his supervisor.

- f. Respondent must have a Board-approved worksite monitor. To be approved, the worksite monitor must be an individual who works regularly in the same physical location as Respondent and who can objectively report on Respondent's behavior and demeanor at work. Respondent must receive Board approval prior to changing worksite monitors. The worksite monitor shall submit quarterly reports to the Board describing Respondent's behavior and demeanor at work, including any areas of concern. The worksite monitor must immediately report any serious concerns to the Board. Respondent is responsible for ensuring the quarterly reports are timely submitted by his worksite monitor.
- g. Respondent shall notify all employers and prospective employers for any position that requires licensure as a social worker (no later than at the time of an employment interview) of this Order.
- h. Respondent shall appear before the Board upon request for the purpose of reviewing his performance during the probationary period. Respondent shall be given reasonable notice of the date, time, and place for such appearances.
- i. Respondent is responsible for all costs incurred to comply with these terms and conditions.
- j. Respondent shall obey all federal and state statutes and regulations governing the practice of social work.
- k. Respondent shall provide written notification to the Board of any change of home address, telephone number, or place of employment within ten (10) days of such a change.
- l. Respondent, Respondent's supervisor, and Respondent's worksite monitor shall each submit quarterly reports to the Board. Each year, the Quarter 1 (January-March) report is due no later than April 5th; the Quarter 2 (April-June) report is due no later than July 5th; the Quarter 3 (July-September) report is due no later than October 5th; and the Quarter 4 (October-December) report is due no later than January 5th.
- m. The notifications and reports required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Social Work, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public

Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to plpublic@idph.iowa.gov.

- n. Only time periods in which Respondent is practicing as a social worker will count towards completion of the probationary period. If Respondent is not practicing as a social worker, the probationary term will be extended until he successfully completes three (3) years of supervised practice.

15. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154C, and 272C and 645 IAC chapters 13 and 283.

1 | 9 | 2023
Date


JAMES BURKHALTER
Respondent

This Settlement Agreement and Final Order is approved by the Iowa Board of Social Work on
February 13, 2023

/s/ Tony Alden

Tony Alden, Board Executive
Iowa Board of Social Work

Copy to:

Jerry R. Foxhoven
3839 Merle Hay Rd, Ste 282
Des Moines, IA 50310
ATTORNEY FOR RESPONDENT